

Court No. - 40

Case :- WRIT - C No. - 10237 of 2025

Petitioner :- Dr. Mohammad Afsar Khan And Another

Respondent :- Purvanchal Vidyut Vitran Nigam Limited, Varansi
And Another

Counsel for Petitioner :- Poorva Agarwal, Punit Kumar Gupta

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Shekhar B. Saraf, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

Civil Misc. Impleadment Application dated 11.04.2025

Heard Sri Punit Kumar Gupta, learned counsel appearing on behalf of the petitioners; Sri Mayank Agarwal, learned counsel appearing on behalf of the builder and learned counsel appearing on behalf of the licensee.

We have perused the affidavit accompanying the impleadment application and find that sufficient cause has been made out for allowing the same. Accordingly, application is allowed.

Necessary impleadment be made during the course of the day.

In addition to above, learned counsel appearing on behalf of the petitioners is also directed to implead Uttar Pradesh Electricity Regulatory Commission, Lucknow as party to the case during the course of the day.

Order on the petition

List this matter on May 7, 2025, as fresh.

In the meantime learned counsel appearing on behalf of licensee is directed to take instructions in the matter and be prepared on the next date.

Order Date :- 28.4.2025

Dev

(Dr. Y. K. Srivastava, J.) (Shekhar B. Saraf, J.)

Court No. - 40

Case :- WRIT - C No. - 10237 of 2025

Petitioner :- Dr. Mohammad Afsar Khan And Another

Respondent :- Purvanchal Vidyut Vitran Nigam Limited, Varansi
And Another

Counsel for Petitioner :- Poorva Agarwal, Punit Kumar Gupta

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Shekhar B. Saraf, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

List on 15.05.2025 as fresh showing the names of Ms. Somya Dwadash Shreni and Sri Mayank Agrawal as counsel for the respondent.

Order Date :- 7.5.2025

Imroz

(Dr. Y. K. Srivastava, J.) (Shekhar B. Saraf, J.)

Court No. - 40

Case :- WRIT - C No. - 10237 of 2025

Petitioner :- Dr. Mohammad Afsar Khan And Another

Respondent :- Purvanchal Vidyut Vitran Nigam Limited, Varansi
And Another

Counsel for Petitioner :- Poorva Agarwal, Punit Kumar Gupta

Counsel for Respondent :- Mayank Kumar Agrawal, Somya
Dwadash Shreni, Narendra Kumar Tiwari

Hon'ble Shekhar B. Saraf, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

On the request of learned counsel appearing on behalf of the petitioner, list this matter as fresh on May 26, 2025, in top ten cases.

Order Date :- 21.5.2025

Kuldeep

(Dr. Y.K. Srivastava, J.) (Shekhar B. Saraf, J.)



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 10237 of 2025

Dr. Mohammad Afsar Khan And Another

.....Petitioner(s)

Versus

Purvanchal Vidyut Vitran Nigam Limited, Varansi And
Another

.....Respondent(s)

Counsel for Petitioner(s)	:	Poorva Agarwal, Punit Kumar Gupta
Counsel for Respondent(s)	:	Mayank Kumar Agrawal, Somya Dwadash Shreni, Ajay Singh, Narendra Kumar Tiwari

Court No. - 39

HON'BLE ARINDAM SINHA, J.

HON'BLE PRASHANT KUMAR, J.

1. Mr. Punit Kumar Gupta, learned advocate appears on behalf of petitioners and submits, his clients have taken a shop in a multistorey building. They seek electric connection. By impugned letter dated 24th March, 2025, respondent no.2 has refused the connection, redirecting his clients to obtain it from added respondent nos.4 to 6. He submits said respondents are the owners/builders. His clients want direct connection, not through said respondents on a sub-meter. Mr. Mayank Agrawal, learned advocate assisted by Ms. Somya Dwadash Shreni, learned advocate appears on behalf of said added respondents. Mr. Agrawal submits, his clients had made clear averments in their intervention application that petitioner is guilty of theft of electricity.

2. Mr. Ajay Singh, learned advocate appears on behalf of added respondent no.3 (the regulatory authority). He submits, impugned rejection is erroneous in treating petitioner's application to be under clause 4.28 (d) in U.P. Electricity Supply Code, 2005. Petitioners had applied under clause 4.9 of the said Code.

3. Mr. R.K. Tripathi, learned advocate appears on behalf of respondent nos.1 and 2 and prays for adjournment. It is granted as peremptory.

4. List on 8th September, 2025 as fresh.

(Arindam Sinha,J.)

(Prashant Kumar,J.)

August 26, 2025
S.P.



2025:AHC:157675-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 10237 of 2025

Dr. Mohammad Afsar Khan And Another

.....Petitioner(s)

Versus

Purvanchal Vidyut Vitran Nigam Limited,
Varansi And Another

.....Respondent(s)

Counsel for Petitioner(s)	:	Poorva Agarwal, Punit Kumar Gupta
Counsel for Respondent(s)	:	Mayank Kumar Agrawal, Somya Dwadash Shreni, Ajay Singh, Narendra Kumar Tiwari

Court No. - 39

**HON'BLE ARINDAM SINHA, J.
HON'BLE PRASHANT KUMAR, J.**

Mr. Punit Kumar Gupta, learned advocate appears on behalf of petitioners.

The writ petition has been called for hearing after it was moved on 26th August, 2025. Paragraphs 1 to 3 from said order are reproduced below.

"1. Mr. Punit Kumar Gupta, learned advocate appears on behalf of petitioners and submits, his clients have taken a shop in a multistorey building. They seek electric connection. By impugned letter dated 24th March, 2025, respondent no.2 has refused the connection, redirecting his clients to obtain it from added respondent nos.4 to 6. He submits said respondents are the owners/builders. His clients want direct connection, not through said respondents on a sub-meter. Mr. Mayank Agrawal, learned advocate assisted by Ms. Somya Dwadash Shreni, learned advocate appears on behalf of said added respondents. Mr. Agrawal submits, his clients had made clear averments in their intervention application that petitioner is guilty of theft of electricity.

2. Mr. Ajay Singh, learned advocate appears on behalf of added respondent no.3 (the regulatory authority). He submits, impugned rejection is erroneous in treating petitioner's application to be under clause 4.28 (d) in U.P. Electricity Supply Code, 2005. Petitioners had applied under clause 4.9 of the said Code.

3. Mr. R.K. Tripathi, learned advocate appears on behalf of respondent nos.1 and 2 and prays for adjournment. It is granted as peremptory."

Mr. R.K. Tripathi, learned advocate holding the brief appears on behalf of respondent nos. 1 and 2 (the supply company). He reiterates reliance on clause 4.28 in part-B of the Code. He submits, the builder had, upon prior consent obtained from the apartment/ unit buyers, availed of single point connection.

Mr. Mayank Kumar Agrawal draws attention to, inter alia, notification dated 10th August, 2018 notifying Electricity Supply Code, (13th amendment), 2018. He points out from it, connection for converting existing single point connection to all the points, requires application by 51% of the consumers drawing electricity from the single point. Petitioners have only 10% of such consumers. His client has made requisite investment for obtaining the connection on applicable tariff. Mr. Ajay Singh, learned advocate appears on behalf of respondent no.3.

On query Mr. Gupta is unable to demonstrate a statement made in the petition alleging that his client had not agreed for the builder to take single point connection and thereupon distribute the electricity. Mr. Agrawal submits, under applicable law and rules, his client is deemed licensee.

In addition to what we have said in preceding paragraphs, annexed to the petition is sale deed dated 17th February, 2024 carrying clause 21, reproduced below.

"21.That the Vendor has got approved one point electricity connection from the electricity department as per the rules at its own cost but it shall be the responsibility of the Vendees to get installed a Pre-Paid Meter for the vended property at their own cost and expenses and the running charges for

which shall be borne by the Vendees without creating any liability on the Vendor. The Vendor shall have all right to get their name transferred from the said sanctioned electricity load to the name of the Resident Welfare Association or Society as per the rules of the electricity department for which the Vendees shall not raise any objection."

Petitioners must have with them 51% of the consumers availing electricity from single point, to together apply for multiple point connection. As of now he does not have cause of action.

The writ petition is **dismissed**.

September 8, 2025
Mohini

(Arindam Sinha,J.)

(Prashant Kumar,J.)



2026:AHC:29515-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 10237 of 2025

Dr. Mohammad Afsar Khan And Another

.....Petitioner(s)

Versus

Purvanchal Vidyut Vitran Nigam Limited, Varansi
And Another

.....Respondent(s)

Counsel for Petitioner(s)	: Poorva Agarwal, Punit Kumar Gupta
Counsel for Respondent(s)	: Mayank Kumar Agrawal, Somya Dwadash Shreni, Ajay Singh, Narendra Kumar Tiwari

Court No. - 29

HON'BLE ARINDAM SINHA, J.

HON'BLE PRASHANT KUMAR, J. (through VC from Lucknow)

In Re:-Civil Misc. Correction Application no. 4 of 2025

1. Ms. Somya Dwadash Shreni, learned advocate appears on behalf of applicant. She submits, two corrections her clients seek. First is correction be made to description of respondents in our order dated 8th September, 2025, by which the writ petition was dismissed. She draws attention to earlier order dated 28th April, 2025 of co-ordinate Bench directing her clients be added as respondents. In spite thereof, description of respondents as appearing in our said order dated 8th September, 2025 is 'Purvanchal Vidyut Vitran Nigam Limited, Varanasi and another'. Second correction be made in said order dated 28th April, 2025 of co-ordinate Bench, wherein her clients have been described as 'builders'. They are the owners.

2. We do see that review applicants were added as respondent nos. 4 to 6 in the writ petition. Also by said order dated 28th April, 2025 respondent no. 3 stood added. Hence, description of respondents as the electricity company and another is a typographical error. The description be corrected in said order dated 8th September, 2025, to describe respondents as 'Purvanchal Vidyut Vitran Nigam Limited, Varanasi and others.'

3. Nothing needs be done regarding contention of applicants that there is

error in order dated 28th April, 2025 of co-ordinate Bench in describing her clients as builder. . This is because said order dated 28th April, 2025 is but an interlocutory order and the writ petition was finally dismissed by us on order dated 8th September, 2025. Complained of error in the interim order was not carried over to the dismissal order.

4. The application is thus disposed of.

(Arindam Sinha,J.)

(Prashant Kumar,J.)

February 10, 2026

Shiraz